

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Muhammad Ali Mazhar
Mr. Justice Aqeel Ahmed Abbasi
Mr. Justice Muhammad Shafi Siddiqui

**Civil Petitions No.1065-K of 2025 &
Civil Petitions No.45-K, 46-K, 47-K,
97-K to 110-K of 2026.** Appeal against the
Judgment dated 02.06.2025 passed by Sindh
Service Tribunal at Karachi in Appeals No. 35, 38,
39, 40, 36, 37,41, 44, 46, 47, 49, 50, 51, 52, 53, 54,
48 & 45 of 2024

Province of Sindh through Chief Secretary, Government of Sindh.	(In all cases) ...Petitioner
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Versus

Abdul Sattar Khokhar	(In CP.1065-K/25)
Salamat Ali Talpur	(In CP.45-K/2025)
Tariq Asad Hakro	(In CP.46-K/2026)
Imtiaz Ali	(In CP.47-K/2026)
Sohail Ahmed	(In CP.97-K/2026)
Amjad Ali	(In CP.98-K/2026)
Imtiaz Ali Hisbani	(In CP.99-K/2026)
Ashfaq Ahmed	(In CP.100-K/26)
Fareed Ahmed Memon	(In CP.101-K/26)
Faheem Mirani	(In CP.102-K/26)
Rafique Ahmed Bhattar	(In CP.103-K/26)
Afzal Ali Memon	(In CP.104-K/26)
Ghulam Qadir	(In CP.105-K/26)
Abid Hussain	(In CP.106-K/26)
Munawar Ali Khokhar	(In CP.107-K/26)
Muhammad Sajid Qureshi	(In CP.108-K/26)
Rashid Ali Malukhani	(In CP.109-K/26)
Karam Ali Bhatti	(In CP.110-K/26)
	...Respondents

For the Petitioner:	Mr.Suresh Kumar, Additional Advocate General, Sindh Mr. Muhammad Iqbal Chaudhary, AOR Mr. Ihsanullah Laghari, Focal Person, College Education Department Mr. Iqbal Ahmed Jumani, Additional Secretary, College Education Department.
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For the Respondents: Nemo

Date of Hearing: 18.03.2026

Judgment

Muhammad Ali Mazhar, J: These Civil Petitions for leave to appeal are brought to challenge the consolidated Judgment dated 02.06.2025 rendered by the Sindh Service Tribunal at Karachi ('**Tribunal**') in Appeals No. 35, 38, 39, 40, 36, 37, 41, 44, 46, 47, 49, 50, 51, 52, 53, 54, 48 & 45 of 2024.

2. Nonetheless, out of 18 Civil Petitions arising out of one and the same impugned judgment, the Civil Petitions No. 45-K/2025, 46-K/2026, 47-K/2026, 97-K/2026, 98-K/2026, 99-K/2026, 100-K/2026, 101-K/2026, 102-K/2026, 103-K/2026, 104-K/2026, 105-K/2026, 106-K/2026, 107-K/2026, 108-K/2026, 109-K/2026 and 110-K/2026 are time barred and rest are within time. In the interest of justice, the delay is condoned and all civil petitions are heard together with the civil petitions within time.

3. The short and snappy facts of the case are that the College Education and Literacy Department, Government of Sindh had sent a combined requisition for the posts of Lecturers (BPS-17) in 23 different subjects including the subject of the Respondent. The vacant posts of lecturers were advertised by the Sindh Public Service Commission (**SPSC**) vide Advertisement No. 10/2012 dated 02.11.2012. After completion of the recruitment process by SPSC, the results were announced on different dates, wherein the Respondent and others were selected for the position of Lecturers of Pakistan Studies/Micro-Biology/Statistics and Geography. So far as the determination of seniority is concerned which is in fact the bone of contention in the present civil petitions, the record reflects that the Lecturers of the English subject challenged their placement in the seniority list (positions

1018 to 1039) before Respondent No.02, which resulted in correction through a revised seniority list. The Respondent No.02 prepared the impugned final seniority list dated 29.08.2023 for the Lecturers (BS-17) of different subjects. The respondents noted that the Final Seniority List did not reflect their selection date i.e. 31.05.2013, which was earlier than later selections mentioned above. They submitted their departmental appeals on 18.09.2023 for correction of the seniority list, which remained undecided, therefore, after the lapse of statutory period, they approached the learned Tribunal for redressal and after hearing the parties, the learned Tribunal allowed the appeals by majority while one of the learned members contributed a dissenting note and dismissed the appeals.

4. The learned Additional Advocate General, Sindh (**AAG**) argued that the learned Tribunal failed to consider that the cases of both the batches in respect of seniority are covered under Rule 11 (a) of the Sindh Civil Servants (Probation, Confirmation & Seniority) Rules 1975, (**1975 Rules**) which provide that a person selected in earlier selection shall rank senior to a person selected in a later selection. It was further contended that in the aforesaid rule, the selection authority is required to issue the merit list and in this case, the SPSC assigned the merit in all subjects and assigned merit which attained finality, hence Rule 11 and its rider cannot be applied in the instant case. It was further contended that the learned Tribunal failed to appreciate that the Lecturers of English subject were selected through advertisement No.5/2013 (21.05.2013), whereas respondents were selected through advertisement No.10/2013 (31.05.2013) and thus lecturers of English subject rank senior to the respondents. He further averred that the combined seniority list was lawfully issued under Rule 9 (2) (proviso) of 1975 Rules under the policy guidelines, therefore, the learned Tribunal had no lawful authority to interfere in policy matters. The preparation

of combined seniority list was mandated by the aforesaid rule which was rightly issued for the Lecturers of 23 subjects. It was further contended that the order of seniority in a combined list is primarily determined by the merit assigned by the SPSC during the selection process and all twenty three subjects against whom the advertisement was published are totally different against each other. The department prepared and issued the seniority list on the basis of the opinion of SGA&CD (Regulation Wing) in collaboration with the Law Department.

5. Heard the arguments. Since the matter is germane to the issue of seniority therefore a preview of the 1975 Rules framed by the Government of Sindh Karachi in exercise of the powers conferred by Section 26 of the Sindh Civil Servants Act, 1973 for regulating the probation, confirmation and seniority of Civil Servants of the province, is required. According to Rule 9 (1), it is provided that in each Cadre in a department, there shall be a separate seniority list of a group of civil servants doing similar duties and performing similar functions and for whose appointment same qualifications and experience have been laid down. While sub-rule (2) emphasizes that the appointing authority shall, in the month of January every year, cause to be prepared, or, as the case may be, revise, the seniority list under sub-rule (1). Provided that in the Collegiate Branch (non-technical) of the Education Department, there shall be a combined seniority list of lecturers. Whereas Rule 11 depicts the mannerism for determination of "inter-se-seniority" of civil servants appointed in a batch or on the same date shall be determined: (a) in the case of persons appointed by initial recruitment, in the order of merit assigned by the selection authority, and if such authority is either not competent to assign such order of merit or has omitted to do so and is unable to overcome the omission for reasons beyond its control, the seniority shall be determined by the appointing

authority: provided further that a person selected in earlier selection shall rank senior to a person selected in a later selection; (b) in the case of persons appointed by promotion on the basis of their inter-se-seniority in the lower Post; (c) in the case of persons appointed by initial recruitment vis-à-vis persons appointed by promotion on the basis that the persons appointed by promotion shall rank senior to the persons appointed by initial recruitment and (d) in the case of persons not covered by clauses (a) to (c), on the basis that persons older in age shall rank senior to persons younger in age.

6. The record brings to light that in fact two separate advertisements were published for the appointment of Lecturers (BPS-17) of different subjects in College Education Department, Sindh through SPSC. The first advertisement No. 10/2012 was published on 02.11.2012 for the recruitment of 23 Lecturers of different subjects, while advertisement No.05/2013 was published on 20.02.2013 for the recruitment of Lecturers meant for the subject of English. After completion of the recruitment process, the recommendations were sent by SPSC, in the piecemeal on different dates in the following manner:

First recommendation for selection of 22 male and 02 female candidates in subject English was communicated on 21.05.2013.

Second recommendation for selection of 165 male/female candidates of different subjects was communicated on 31.05.2013.

Third recommendation for selection of 47 candidates in Political Science and Sindhi was communicated on 27.08.2013.

Fourth recommendation for selection of 72 candidates in Islamic History and Education was communicated on 02.12.2013.

Fifth recommendation for selection of 207 candidates in Botany and Zoology was communicated on 03.03.2014.

Sixth recommendation for selection of 274 candidates in Chemistry and Computer Science was communicated on 09.04.2014.

Seventh recommendation for selection of 173 candidates in Commerce was communicated on 08.08.2014.

Eighth recommendation for selection of 127 candidates in Islamic Studies, Mathematics, Economics and Pakistan Studies was communicated on 21.08.2014 & 21.10.2014.

Ninth recommendation for selection of 15 candidates in Sociology was communicated on 15.12.2014.

Tenth recommendation for selection of 87 candidates in Physics was communicated on 16.01.2015.

Eleventh recommendation for selection of 46 candidates in Urdu, Home Economics and Geography was communicated on 30.04.2015.

7. The seniority position of Lecturers of English subject was corrected on the ground that the advertisement published for their recruitment and the recommendation for their appointments were made separately and prior in time, hence their representation was rightly considered in terms of the proviso attached to clause (a) of Rule 11 of the 1975 Rules. Insofar as the selections made pursuant to combined advertisement No. 10/2012, dated 02.11.2012 are concerned, the most indispensable point in issue which is rather *sine qua non* is the date of recommendations forwarded by SPSC for selection with reference to advertisement No.10/2012 dated 02.11.2012 which has been incorporated in the majority judgment of learned Tribunal as indicated by us in preceding paragraph.

8. No doubt the niceties of the proviso attached to sub-rule (2), Rule 9 of 1975 Rules provides that in the Collegiate Branch (Non-Technical) of the Education Department, there shall be a combined seniority list of Lecturers. Even for the compilation of combined seniority list of Lecturers, the determination of inter se seniority is a key feature which always needs to be properly addressed by the competent authority. At the same time, the dictates of Rule 9 (1) cannot be disregarded simply which press for a separate seniority list in each Cadre in a department/group of civil servants doing similar duties and performing similar functions and for whose appointment same qualifications and experience have been laid down but the parameters with proper framework for determination of inter se seniority is jotted down under Rule 11 of the 1975 Rules with a clear proviso that a person selected in earlier selection shall rank senior to a person selected in a later selection. While referring to Sub-Rule (1) of Rule 10 which articulates that subject to the provision of Rule 11, the seniority of a civil servant shall be reckoned from the date of his regular appointment, the learned Tribunal rightly held that the provisions of sub-rule (2) of Rule 9 cannot be read in isolation but it should be read in harmony with the provisions contained under Rules 10 and 11 of the 1975 Rules. Albeit, the competent authority while considering the representations of lecturers of English subject, accorded relief to them rightly so being mindful to the correct exposition of law that they were appointed on the basis of separate advertisement and separate recommendation for selection which was earlier in time but instead of applying same analogy and rule for determination of inter se seniority of the successful candidates recommended for recruitment by SPSC with respect to the advertisement of 2012, the treatment was altogether different and with disregard of the rules.

9. The learned Tribunal relied on the judgment rendered in Service Appeal Nos.878 and 879 of 2019, dated 13.03.2020 wherein an identical controversy was involved in which it was held that the appellants are entitled to be treated senior than those having been selected later on. The aforesaid judgment was challenged in this Court through CMA Nos.529-K and 530-K of 2020, in Civil Petition Nos. Nil-K of 2020 but while affirming the directions of the Tribunal for compiling the seniority list in accordance with the batches selected for appointment, the civil petition was dismissed and leave was refused. The operating part of the aforesaid order of this Court brings to light the neutral and dispassionate application of rules with the observation that all the batches were assigned seniority in terms of the provision appended to Rule 11 (a) of the Sindh Civil Servants (Probation, Confirmation & Seniority) Rules, 1975 which provide that a person selected in earlier selection shall rank senior to a person selected in the later selection.

10. In our considered view, the directions contained in the impugned judgment do not require any interference. Last but not least, we would also like to tend to one more crucial issue at this moment. In the case at hand, the aggrieved party against the judgment of the learned Tribunal is the Government of Sindh rather than the person or persons whose seniority is literally affected by the impugned judgment. The locus standi to challenge the seniority disputes typically vest in the employees who are directly affected by the seniority disturbance in violation of relevant rudiments, such as date of appointment; date of regularization; date of promotion and the Rules in vogue for determination of seniority or inter se seniority because seniority goes along with the rules but not by preferences. The petitioner cannot be regarded as an aggrieved person at least for the purpose of challenging a Tribunal's decision on the issue of seniority. Though it may approach this Court for

challenging the misinterpretation of law, jurisdictional error or conflict with service rules or precedents, but not as a victim of seniority. If no civil servant/employee challenges the order or judgment of the Tribunal, the decision attains finality and it must be implemented. In such scenario, the government is not expected to act as rival employee but a neutral employer rather than litigating or pursuing personal interests to elongate litigation or reopening it irrationally when no employee is found to be aggrieved by fixation or determination of inter se seniority by the Tribunal as a first fact finding forum in terms of Article 212 of the Constitution of Republic of Pakistan 1973 (**Constitution**) which holds finality and cannot be dismayed or washed out casually. The State should act impartially and fair and square and not as a private opponent or contender.

11. Here the principle of “no aggrieved person, no appeal” is also applicable which accentuates that a person can be found aggrieved only if his legal right or rights are adversely affected, however mere discontent or displeasure is not enough but there must be an actual legal injury. The doctrine of locus standi is meant to filter out frivolous litigation for saving precious time of Courts and ensuring that the parties are present and arguing for their own violated rights. The jurisdiction of Courts cannot be invoked for immaterial or nonfigurative questions having no nexus with the valid grievance. Neither the department has suffered any legal injury nor is it an affected party nor has any serious question of law been raised in terms of Article 212 of the Constitution. At this juncture, a phrase “out-heroding the herod” is quite relevant that originates from Shakespeare’s Hamlet, referring to someone being even more excessive or outrageous than a character (Herod) known for those very traits. The doctrine of aggrieved person acts as a gatekeeping principle. The doctrine of locus standi is mirrored in the Latin maxim “*ubi jus ibi remedium*”, where there is a right, there is a remedy. If

a legal right is infringed, the victim has a corresponding right to approach a court for redressal, while “*damnum sine injuria*” explicates “no legal right is infringed so no action lies” and whereas the maxim “*interest republicae ut sit finis litium*” ensures finality of litigation and lays emphasis on bringing disputes to an end which is necessary for the equanimity and functionality of the legal system and society as a whole. In the case of Province of Punjab vs Dr. Muhammad Afzal (**PLD 1999 SC 337**), it was held that the Government should act as a fair employer and not as a contestant fighting employees.

12. In the wake of the above discussion, we do not find any illegality, irregularity or perversity in the impugned Judgment passed by the learned Tribunal. All the Civil Petitions are dismissed.

Judge

Judge

Judge

Karachi

18.03.2026

Khalid

Approved for reporting